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CourtSUPREME COURT

Date1985-09-07

Appeal No.CIVIL APPEAL NO. K. -102 OF 1976

JudgeMUHAMMAD HALEEM, ACJ., SHAFIUR RAHMAN AND ZAFFSR HUSSAIN MIRSA

Parties(KH.) ABDUL MAJEEP VERSUS CUSTODIAN OF EVACUEE PROPERTY AND OTHERS

Lawyers

FOR THE APPELLANT 5 A.K. BROHI, SENIOR ADVOCATE SUPREME COURT WITH S M. SADIQ, ADVOCATE, INSTRUCTED BY S.M. ABBAS, AOR.FOR THE RESPONDENTS 2(A) TO 2(D) : AAHTAR MAHMUD, ADVOCATE/AOR SUPRCAE COURT.FOR THE RESPONDENTS I TO 3 : EX- PARTE.

Statutes

CONSTITUTION OF PAKISTAA 1973 - ARTICLE 185(3) AZAD .1 ARUMS SAD LASHMIF COURTS AND CODS (1949) - S. 16 READ WITH PAKISTAN (ADMINISSTRATIOB OF EVACUEE PROPERTY) ACT(XII OF 1957) - S. 3

Judgment

Shafar Rahman J.-Leave to appeal was granted to the applicant to examine, inter alia, the true scope of section 3 of the Pakistan (Administration of Evacuee Property) Act, 1957.

2, The disputed property is a bungalow on Clayton Road, Karachi, located on plot No. 14 J. M-5 (City Survey No. J M 5/928) measuring 1355 sq. yds. One Gopaldas Daulatram had obtained it on lease for 99 years commencing 21st May, 1932 from Karaahi Municipality, for raising a residential building thereon. Two conditions of the lease agreement may in particular be noted at this stage. Condition No. 6 provided that "The said plot shall not be sub-divided or amalgamated with any other plot except with the previous sanction of the Managing Committee". Condition No. 9 provided that "The lessee will be at liberty subject to the above conditions to sell, assign, or otherwise transfer his rights under this lease".

3 All the members of the joint Hindu Family of which Gopaldas Daulatram was the karta submitted a joint application (undated) listing the joint family properties located in Karachi. At serial No. 4 was this disputed property. They stated as follows 'By an oral partition made between us some time before 1st April 1942 we have divided all our joint family property consisting of the above immovable properties and cash, securities and other immovable properties situated at Hyderabad Sind, the immovable properties Karachi have been allotted on partition in the following manner:- Properties described above as Nos. 1, 2 and 3 have been allotted jointly to Parse Gopaldas Bhavnani and Arjun Gopaldas Bhavnani in equal shares, while the property described above as No. 4 has been allotted to Mrs. Tulsibai Gopaldas Bhavnani and her interest in this property would be a life interest under the Hindu law and would revert after her death to Sob Parse Gopaldas Bhavnani and Arjun Gopaldas Bhavnani referred to above in equal shares.

The possession of the property has been transferred already in accordance with the partition mentioned above and we therefore request you to effect mutation in your records accordingly. We shall be ready to appear before you and make our statements at such time as required, Since the partition each one of us is in possession of the properties allotted as mentioned above".

4. They appeared before the City Deputy Collector Karachi and admitted this partition.

5 Tulsibai Gopaldas, executed on 5-12-1947 a special power of attorney in favour of Gopaldas Daulatram authorising him to sell the property in dispute.

6. On 6-12-1947 Gopaldas, for himself and as attorney of Tulsibai the disputed property to Rubab Bai w/o Gfulam Hussain Ibrahim Makheswala for a sum of Rs. 50,000. The sale deed was, formally registered on 17-3-1949. Soon thereafter in 1950 Mrs.

Rubab Bai moved the Custodian under section 16 of Ordinance XV of 1949 for confirmation of the sale. It seems to be disposed of by Deputy Custodian Evacuee Property on 5th of May, 1959 who passed the following operative

"It is therefore, ordered that transfer of full interest in the property in application described above cannot and shall not take place, and on the ground stated above life interest being the only interest valid under the sale deed. As to the validity of the death of the vendor-Respondent No. 2 Mrs. Tulsibai also cannot be confirmed, as the applicant failed to establish that the vendor Respondent No. 2 is still alive.

Property shall retain its character as Evacuee property, confirmation is refused and the

application shall stand rejected wholly. It is further ordered that the applicant shall surrender the property to the Rehabilitation and Settlement Commissioner, Karachi, within a reasonable time of notice of the order, in default action in prosecution of the applicant will follow".

7. An appeal was filed by Mrs. Rubab Bai which was allowed by Additional Custodian on 26-9-1959 holding as follows "As regards the question relating to the rights of Tulsibai even assuming that she had no more than a life interest that right subsists because the affidavit filed by Mr. Dinooal shows that she is still alive and it would be idle to speculate now as to what the legal position would be after her death. There is also the fact that a Hindu widow who holds a life interest only can transfer the property absolutely subject to objections by the persons who happen to be reversioners at the time of her death. If the reversioners do not challenge her right the transfer of the absolute interest by her would be valid. Taking all these facts into consideration and also having regard to the fact that the adequacy of the consideration is proved by Mr. Dingoom's affidavit, the appeal is allowed and the above mentioned sale deed is confirmed with retrospective effect".

8. The appellant had, as also one Rashid Turabi filed CH forms for the transfer of the portions of this very property, which was in their possession. These were rejected on 17-11-1959 on the ground that the property was not in compensation pool.

9. On 23-9-1960 Mrs. Rubab Bai sold the disputed property to Muhammad Ali Remani for a sum of Rs. 45,000. It was got registered. 10. The appellant, as Commissioner of Income Tax addressed an application dated 6-4-1961 to the Director of Enforcement Evacuee Property and Claims objecting to the legality and propriety of the order passed by the Additional Custodian on the appeal of Mrs. Rubab Bai and wanted it to be scrutinised afresh. He concluded his application as follows:- "In the circumstances stated above, it is clear that the property in question has been declared to be non evacuee owing to a misrepresentation of facts and mis-interpretation of law. It is, therefore, prayed that thorough investigation may kindly be made in the above case and as a result of such investigation the property in question held to be an evacuee, it may be transferred to me as an informer against my verified claim which is Rs. 91,200 and Rs. 24,430 under schedule I and VI, respectively".

11. The enquiry was started, it appears, under MLR 49 and was primarily concerned with the certificate issued under section 2Q(3)(9)(II) of the Pakistan (Administration of Evacuee Property) Act, 1957 in favour of Gopaldas and Mrs. Tulsibai. On completion of the enquiry a report was submitted to the Custodian Evacuee Property who marked it to the Additional Custodian for inquiry and report. The Additional Custodian heard the parties and submitted his report to the Custodian which is dated 25-12-1962 and concluded as follows "In the matter in face of the above discussions of facts in view of the fact that no fraud or misrepresentation was practised by Kabahbai that there is no substance in the allegations and the order dated 26-9-1959 passed by Mr. Riazuddin Ahmad awarding confirmation in favour of Rubab Bai in respect of the sale deed dated 6-12-1947 registered on 17-3-1949 relating to the property bearing F.O. No. M 921 and now owned by Muhammad Ali Hemaai through sale deed dated 17-9-1960 is perfectly valid and effective in law".

12. When this report came up before the Custodian Evacuee Property, two applications supplementing the facts and grounds were filed, one by the Enforcement Staff and the other by the appellant. Upon this the Custodian Evacuee Property once again remanded the matter to the Additional Custodian, the points raised in these applications were not treated upon and the condition earlier arrived at was not varied. 13. The Custodian Evacuee Property exercised his suo motu revisional powers and passed the following operative order on 9-5-1966 "I accordingly under section 43(4) of the Pakistan (Administration of Evacuee Property) Act, XI of 1957 set

aside She order dated 26-9-1959 of the Additional Custodian and restore the order stated 5-5-1959 of the Deputy Custodian, under which she latter refused to confirm the sale in favour of Ruqab Bai and declared that "the property shall retain its character as Evacuee Property". Subsequent transactions based on the title claimed on the basis of this sale will naturally be invalid and the property will continue to be evacuee's as was held by the Deputy Custodian".

14. This operative order of the Custodian was based on the following findings of fact and law recorded by him. The Additional Custodian passed the order "without a proper search into the relevant documentary material and through a misreading of some important material which was examined".

On the basis of an oral partition of the joint Hindu Family property which had taken place in 1942, an application was made the same year and "the name of Tulsibal was entered in 1942 and not in 1949 as stated by the Additional Custodian".

(iii) In view of Full Bench decisions in *Ramgopal v. Tulsi Ram*, AIR 3923 Alabd. 641 a family arrangement or partition could be made orally and when made orally could be effected without a registered instrument. "As in the present case the family arrangement was oral and not reduced to writing, its registration was obviously not necessary and the arrangement took effect without registration. This means that the basic ground on which the Additional Custodian reversed the order of the Deputy Custodian does not hold good".

(iv) The transfer from Ruqab Bai to Muhammad Ali Hemani was for inadequate consideration. Inclusive of past rent due it was sold for rupees 45,000 in 1960 when the same property was sold without arrears of rent for rupees 30,000 in 1947.

(v) Ruqab Bai herself was an evacuee.

(vi) The bona fide of the transaction entered into between Ruqab Bai and Muhammad Ali Hemani was doubtful. The income tax clearance certificate and its revocation together with the charge in "f b" "f # >>>" of to.

"p" j d*viV.d pr, " pa",,,E "d >> «@«** «a W"> Rmral of lb. ord.r of the Deputy CntXi.. wu cm Bf the Additional Custodian and the Custodian n.. *, « «r£*5 valid doubt. were raised about the bona fide of the entire legal transaction confirmation has to be refused. * there is no Mf£!tffi!SSad A.-' I?eroa1ni« the «co@d vendee of this prooerfor thereupon filed a constitutional petition. It was a ZT declaring the impugned order of the Custodian dated 9-5-1956 as an unlawful authority and of no legal effect. 3 5 1956 to be c<," " »* (f) The Custodian had the suo motu jurisdiction to revise the order.

SSVIm TO jurisdiction. * f 1957' H had competence exercised his i;*.?irector ?! and Mr. Majid were not aggrieved of action HT/H.® r 8 lbP h@d *fficient *««« to justify inflation of K.? eytiohn#CUSTed,aD "nder Pointl ex££ W « S.PX7rip.«rte immedi*tel» bef** >-W»S7 (fr) <J,todian bad n»* approved of the power of attorney of Ms* Ruqab Bai* to manage the property. 7 1 (y) I/I/I" th,l dtcisi«n «f the Privy Council in *Thakur Nirman Singh and others v. Thakur Lei Kudra t-eneb Heroin Singh and others* (A. 1 R. 1926 Privy Council 100), and *Firdut Khan v S,heh* 14 10th-TS (PLD 1970 Peshwar 141) it " L* held that oral partition was not proved and the mutation proceedings in the municipal record were of no avail for proving the Partition was a case not accepted or given effect to in the income tax record. * (ri) The mutation proceedings substituting the name of Tulsibai as lessee of the property were not proved as required by law laid down by this Court in *Khan Muhammad Yusuf Khan Khattak v.*

2017 3 SC 160) > Abdah *d 3 others v. Abdul Karim and others (PLD 1968 SC 140) and Malik Din and another v. Muhammad Aslam (PLD 1969 SC 136), (W^o FEEV, 8th TJ, ANNCRAL partition bad *ake« Pl«« and did not require the registration as amongst the co-sharers of the property as Mst. Mir, r? v' fhJ 1^o 8nlece<3'Et t**le or interest the coparcener* pr ejrtrty of which partition had taken place, she could not acquire 2li!L." ET W" k0Bt 8e, tiDg , fee Pa**>i°n reduced to w, S a>d getting the tamo registered.

(viii) Reacquisition of title of Tulsi Bai on the basis of oral partition, snot in w itmg and registered was an act without jurisdiction on the part of the Custodian.

(ix) The treating of Mst. Rubab Bai as evictee who was not treated so immediately before M-1957 was without lawful authority notwithstanding the fact that this particular property had been treated as evacuee property.

it was not necessary to examine whether the Income-tax Department after having once granted a No Objection Certificate could revoke it.

17. Mr. A. K. Bhasi, the learned counsel for the appellant contended before us that it was not the finding of the High Court that the Custodian Evacuee Property had no jurisdiction in revision to interfere with the approval accorded by the Additional Custodian on appeal. If the exercise of revisional powers by him did not lack jurisdiction and was also not in excess of jurisdiction then even the said finding of the High Court would stand protected and will not be liable to interference by the High Court in exercise of the constitutional jurisdiction. According to the learned counsel, this Court has time and again emphasized the special nature of the Evacuee Laws, the perimeter within which the Custodian has to administer evacuee property and how he has to decide controversies brought before him. None of these decisions justified interference with the findings of the Custodian unless it was on the ground of jurisdiction or excess of jurisdiction. To support his contention the learned counsel for the appellant has relied on the decisions of this Court in *Sahibul v. The Custodian Evacuee Property W.P. Karachi* (PLD 1957 SC 63), *Sungreen & Company Ltd. v. Qamaruddin Muhammad Hashwani* (PLD 1955 SC 144), *Khan v. The Election Tribunal, Dacca and two others* (PLD 1963 BC 704) and *Mian Rafi-ud-Din and six others v. The Chul Settlement & Rehabilitation Commissioner and two others* (PLD 1971 SC 252).

18. It was also contended by learned counsel for the appellant that in confirming the sale after refusing confirmation, the Custodian could have taken into consideration the fact that the property was orally partitioned, that Gopal Das was not its owner, that there was suppression of the fact that Tulsi Bai had a mere life interest, that Gopal Das was left with no interest in it and the No Objection Certificate of the income tax department issued to him could not be of avail. He could also take note of the subsequent sale and inadequacy of consideration therefor. All these factors were relevant to the determination and were taken into consideration by the Custodian for refusing confirmation. The High Court could not in the exercise of its constitutional jurisdiction substitute its own judgment with regard to the effect of those relevant factors and act in aid of manifest injustice.

19. The learned counsel for the respondent on the other hand contended that the registered sale deed was in the name of Gopal Das who was shown to be the sole owner of the property which did not at any stage either notionally or actually belong to the joint family. Even if the partition had taken place it was not acted upon or given effect to particularly in the Income tax record and Gopal Das had sold the property in favour of the first vendee. The question of the first vendee being an Indian National was never directly raised and properly adjudicated upon, the entries in the Emigration Register referred to and relied upon by the learned Custodian were not identified to be that of the first vendee. There was overwhelming evidence on the record in the form of notices issued from the Additional Custodian and the acknowledgments made by the

informer Abdul Majeed showing that the first vendee resided in the same premises and was communicating with him. For justifying interference by the High Court the learned counsel referred to and relied upon the decisions of this Court in the cases of Malik Khizer Hay at Khan Tirana and another v.

Mst. Zainab Begum and others (PLD 1967 SC 402) and Karachi Electric Supply Corporation Ltd. v. The Karachi Electric Supply Corporation Ltd Labour Union (PLD 1967 SC 513). He also relied upon the decision in Habibullah Khan and another v. Election Tribunal, Jhang and others (PLD 1962 Lahore 797) and Hafiz Abdul Hakim and others v. Muhammad Anwar Khan and another (PLD 1963 (W. P.) Lahore 63).

20. The learned counsel for the respondent seriously objected to the locus standi of the respondent and the competence of the revision petition in his behalf. It was next contended that Transfer of Property (Pakistan) Ordinance 1947 did not apply to Karachi, that no objection certificate from income tax authorities was not necessary and its grant or revocation did not really matter. As regards the private partition it was urged that Tulsibai was not a coparcener, was not entitled to share and if she received any, it required writing and registration. He referred to sections 221, 172; 315, 303, 322 and 242 of Mulla on Hindu Law, 10th Edn. Besides Gopaldas being the sole owner, acquisition of any interest by Tulsibai required writing and registration. Reliance has been placed on decisions in Sundar Singh Majithia v. Commissioner of Income-tax, AIR 1938 All. 452, Lazmappa Goneppa v.

Bhimappa Goneppa and others, AIR (33) 1946 Bombay, 126, Nainsukhdas Sheonaryan v. Gowardhandas bindrabandas, AIR (35) 1948 Nagpur 110, Gutta Radhakrishnayya v. Guita Sarasamma, AIR (33) 1951 Madras 213, and Bal Kishan v. Saliq Ram, AIR 1946 Allahabad 476.

21. Finally, it has been contended that even if the evacuee character of person of Gopal Das or Tulsi Bai or Rubab Bai was in issue the evacuee nature of this property was never so and on account of section 3 and 3-A the property could not be dealt with or treated as evacuee property after 1-1-1957 once the sale stood validly confirmed.

22. In order to understand the questions involved in the appeal it is necessary to slightly touch upon the nature of jurisdiction exercised and the power possessed by the Custodian while administering evacuee property. He does not function as a Court of law. Yet the Custodian has a duty to act judicially. This apparent paradox ceases to be so if the concept of a Court of law and judicial functioning is kept in view. Section 1 of the Evidence Act provides that this Act extends to the whole of Pakistan and applies to all judicial proceedings in or before any Court. In commenting on this provision in its Principles and Digest of the Law of Evidence by Monir Vol. 1 the author makes the following comment at page 9 "The word 'judicial' has two meanings. It may refer to the discharge of duties exercisable by a Judge, by Justices in Court, or to administrative duties, which need not be performed in Court, out of respect of which it is necessary to bring to bear a judicial mind—that is, a mind to determine what is fair and just in respect of the matters under consideration. Justice, for instance, is exercised judicially when a Judge or Justice in Court, and they also act judicially when they sit in their private room what is right and fair in some administrative matter brought before them, for instance, in a case of a Singsi which only administrative duties are discharged. It is regarded as a judicial proceeding within the meaning of the Evidence Act".

23. This distinction has also been brought out in Jyoti and Summer & Winter Garden Society Limited v. Parkmore (1992 1 QB 24). The Custodian does not function as a Court will be clear from the two decisions of this Court in The Punjab Province v. Site Rai, PLD 1956 FC 157) and Sahibrai v. The Custodian of Evacuee Property (1957 SC 63, in which the Court observed that notwithstanding a duty

to act judicially as has been held in Han * Mehra v. Custodian, Evacuee Property and others (198- SCMR 92).

Ji* decisions are open to scrutiny on grounds of -no misdirection or failure to follow judicial procedure etc (Rshms Chief Sec Ten Commissioner ; PLD 1973 SC 74), "The exercise of lawful authority is subject to the necessity of interpretation of the law as it is applied and where that law is wrongly interpreted the action cannot be held to be otherwise than devoid of lawful authority Karachi E * Supply Corpn. Ltd. v. Labour Union PLD 1967 SC 513).

25. The High Court by the impugned order has not denied * Custodian the power to suo motu revise the order of the Additional * Custodian. The learned counsel for the respondent objects to its ' H.

It is so and that it was in fact not a suo motu exercise of powers but a PP Motion made by persons of authority considering themselves aggrieved, the confirmation ordered by the Additional Custodian been held to have not a party, much less an aggrieved party to the proceedings this objection cannot be advanced at all. The Custodian could not have received exercise of suo motu revision. The date 1-1-57 and the introduction of section 3A of the Administration of Evacuee Property Act have no relevance or bearing because the vendee from the evacuee had herself applied for confirmation and that application was pending on 1-1-57 and also when section 3A was introduced.

26. Coming now to the facts of the case from the undated application filed by all the members of the joint Hindu family of which Gopaldas Daulat Ram was the Karta. It is clear that an earlier partition of the joint family property had taken place before 1st April, 1942 and that in respect of a part of the joint property the ones located in Karachi it was sought, to be given effect to as implemented in Municipal record by recording and reflecting the partition as agreed to orally. This earlier partition acted upon and implemented was admittedly unregistered.

27. The objection to it is that Gopaldas Daulat Ram, the individual and not the Karta, was the lessee of the acquisition of immovable property by him could not be amalgamated and treated as the joint Hindu Family property. Another objection is that Tulsibai as wife of Karta Gopaldas Daulat Ram was not a coparcener, was entitled to no share and could not get one except by a registered deed. The third objection is that even if a partition had taken place it was never really acted upon, as per record.

28. It is true as stated while giving the fee 5% on the undervalued property. It was in the name of Gopaldas Daulat Ram, acquired property.

This property was not the ancestral property any, (Chapter 223 (6) the following principle of Mitakshara Law is, "Accumulations of income of the joint family property, XSSI'S property. Joint W- Joint of such proceeds are ancestral property a vested interest not that sons, grandson and great grandsons' ; but only in the income and accretions of accretions which accrued after their birth, but also in the income and accretions prior to their death. " 29. This, were not left at that. All the members of the joint family including Gopaldas Daulat Ram had appraised it as joint property. : g5rjfc&xte ever title had arisen or was in view. The act of all (the family but a final seal to the legal presumption that could arise being a joint family property.

30. The undated application seeking motion of the municipal authorities, the lessor, Tulsibai to be made in the name of the owner, how the owner of the property is in the name of Tulsibai memorandum and return of the property in favour of Ruben B.L. Zisstz fizza TM Pjk r rousfloodor nMM*S*o« My rt'Sen.« built. heieinufiur munuonud that is to say "To-enter into

agreement to sell and Cⁿ*y JJoos me rnmovbU choou with or without any funmur© a ift cuy of property owned by me and situate on Cl y bearian Reali- Karachi Registration District aad son-districtKar J cicaeil tered No. 14 Sheet J. M 5 and for that purpose receive money and the sale price and pass receipt and drJu olaer acts, execute the sale deed aad get u registered and t as may deeds and things for selling and conveying me sn Pp «taator £ denmnd n.c..ry if i w.i. p.r.on»il, pr««»> “f 1*” „d of ib,. power d. ber.by n„e, .0 mu, nod‘ ’ 7 in...

Attorney do for the above defined ourpose by virtue presents.” 31 The registered sale deed contains the following recital.

“And whet... tb. ..id Oop.lhn. D.ul.tr. »“TM*“ “5 mutated the said hereditaments ;a the usmoof hi> wre n Mrs.Tulsibai Gopaldas Bhavnani»» the records of the city Collector of Karachi with the result that th© same of the said Mrs. Tulsibai Gopaldas BhavEasi appears as the owner of the said hereditaments ia the property register maintained m the office of the City Deputy Collector o? Karachi,” 32, Getiisg the title through these documents Mst Rubab Bsd or her successor-ia interest could not repudiate the ownership of Tuisi Bai nor the status of her husband as as Attorney authorized to do the specified acts mentioned in the power of Attorney, It is in the costext of these submissions lending fixity to the legal character of Tubs Bsi as vender that the antecedent private partition gets endorsed and recognised. It is not ope© in view of these documents which are the very basis ©f title and interest of transferne to say or for the Court to bold that Mst. Tulsi Bai was sot ths owner of the property end that her attorney continued to be the owner.

33. It is ©of denied that as between members of the fasrily era! pari- ti©n, legally effective and biasing can take place ssd further that its subsequent recital will set require registration. The document evidencing *ueh an oral partition is the joiat application. A perusal ef it nukes it clear that it is sot & document itself effecting partition. It contains jj recital of a partition having already take© place It tees not our. ireis-tien the entire property which was the subject matter of partition It does set reflect is all its completeness end totality that partition It only relates to properties located in Karachi, whose partition was sot postponed but eomprehcBsively dealt with at the time of ora! partition.

The contention that Tulsibai was aot a cpancener end acquisition of any interest in property by her required registration is equally untenable. Section 315 af the Hindu Law by Mulla provides that- “A wife saanot herself demand a partition but if a partition dees take place between her husband and his sons, sbe is entitled to receive a share equal to that of a son and to hold and enjoy that share separately eve® from her husband”.

Similarly on tha question as to how partition ©f joint Hindu Family takes place it is stated in Section 325 ibid that- “Partition is a severance of joint status, and as such it is a matter ef individual, volition. All that is necessary, therefore, to constitute a partition is a definite and unequivocal indication ©f his intention fey a member of a joint family to separate himself from the family and enjoy his share in severalty. It is immaterial, in such s case, whether the other members assent. Once a member of a joint family has clearly and unequivocally intimated to the other members bis destr® to sever himself from the joint family, bis right to obtain and possess his share is unimpeachable whether or not they agree to a separation, aud there is an immediate severance of the joint status. The intention to separate may be svinssd ia different ways either by explicit declaration or by son duct”.

Further in Section 327 (ibid) it is stated- Ths clearest case is where the members of a joint family divide the joint property by metes and bounds and esch member is in tejrsi ate possession and enjoyment ef the share allotted t© him on partition 34. Two eases from Indian jurisdiction

illustrate the point. On reg- jiflisl'cr'theTC the decisioc in Tek Bshadur Bhujil v. Dtbi Singh Bhujtl SCI 290)- "Family arrangement as suefe can be arrived at orally. Its terms may fee rec®rded in writing as a memorandum of what had been agreed upon between the parties. The memorandum need not be prepared for the purpose of being used as a document on which future title of tbs partis* fee founded. It is usually prepared as a record of what had been agreed upon so that there be bo hszzy notions about it in future It is only wh«n the parties reduce the family arrangement in writing with the purpose of usieg that writing as proof of wfaat they had arranged and, where the arrangement is brought about by the document as such, that the document would require registration a® it is then that it would be a document of title declaring for future what rights in wbat properties the parties possess." 35. The second decision in Mam Char an Das v. Giriar.ar.dini Devi (1965 3 S.C R. PP 850-5!) relates to the nature and scope of a family settlement in the following words- The word 'family in the context is not to be undertrtood in a narrow sense of being a group of persons who are recrgnised in law as having a right of succession or having a elaim to a share in the property in dispute. In Ramgouda Annagouda's {L R. 63 I. A.

356) esse, of iho three parties to the settlement ©1 a dispute concerning the pioperty of a deceased person ©»« was his widow, other her brother and the third her sou-in-law. The two latter could not, under the Hindu Law, be regarded as the heirs of tfee deceased. Yet, bearing in mind their near relationship to tfee widow tfce settlement of the dispu'e was very properly regarded as a settlement of a family dispute. The consideration for such a settlement, if one rosy put it that way, is the expectation tbet such ® settlement will result in establishing or ensuring amity-and good will amongst persons bearing relationship with cae another. That consideration having been passed by each ©f the disputants the settlement eenmtng of recognition of the right asserted by each ether cannot fee permitted to fee impeached thereafter.

36. It is clear, therefore, from the preceding discussion that the family settlement was complete, that Mst. Tulsibai had obtained life interest in the disputed property reserving the reversioners right for her two sons. A ale fey b*r required sanction of the Custodian which was rightly applied for.

37. Mst. Fatah Bai, the vendee had filed tfee application in 1950 invoking the power ef the Custodian under section 36 of Odins- cce XV of 1949. 3t is this power as repredueat! in section 20 of Act XII of (957 that ante to be exercised by tfee Cuttodian on 26-9-3959. Section 16 oi Ordinance XV ©f 1S49 is reproduced hereunder- "16. Restriction on transfer by eve cutes.-(1) Ivo creation or transfer ®f any right ©r interest in er encumbrance upon any property made in any manner whatsoever on or after the first day of March, 1947, by or on fcebaif of an evacuee, or by or en btbail ol a person who has or may hereafter became an evacuee after the date of such creation or transfer, shall be effective so as to confer any right or remedy on any party thereto or on any person claiming under any such party, unless it is confirmed by the Custodian.

12) An application for confirmation of sash ersation of * right or etscuibcranc«t or transfer as afores&id may be made to the Uis-tediaa within the prescribed period by any party thereto, or oy my parson claiming under or lawfully authorised by such party.

(3) The Custodian shall hold a summary inquiry into the application ia the prescribed manner, and- (a) ihall reject the application if the creation or transfer- (f) wan ©? is prohibited under nay law for the lira® being ia fores, or m was not ©r is sat covered by a certificate from the Pribed m-conse-tas. authority to tbs effect that ao abjection axisted ©r exists to such arestlon ©s' transfer ; (b) may reject the application if ha is of opiaioa that the creation m transfer- (t) was not or has not been catered into a good faith ar for a adequ* ate consideration, ©r (ii) ought for any other reason not t® be confirmed.

{4> If the application is not rejected under sub-section (3), the Court may confirm the creation or transfer either unconditionally or subject to such terms and conditions as it may impose", 38. The procedure prescribed under Section 16 by rule 12 of the Administration of Evacuee Property Rules 1950 was as follows: for confirmation under section (2) of section 16 particulars of the property, the name of its transferor or transferee's address, if known, the nature of the transaction sought to be confirmed, the consideration paid or deferred together with the dates on which paid.

(2) The application shall be presented within sixty days of the date of publication of these rules or the date of execution of the instrument.

Instrument effecting the transaction sought to be confirmed, whichever is later, and any period during which completion of such transaction is prohibited by or under any law for the time being in force in the area in which the property is situated shall be excluded.

(3) The application shall be accompanied by a certificate in terms of section 3 of the Transfer of Property (Pakistan) Ordinance 1947 by the inspecting Assistant Commissioner of Income-tax of the area in which the property is situated or such other officer as may be appointed in his behalf, or in the absence of such officer a certificate declaring why such certificate is not attached, and by a duly attested copy of the instrument effecting the transaction sought to be confirmed and of such other documents as may be relied upon in, and the stamp bear a Court-fee stamp of rupees twenty or rupees ten according to the value of the consideration does or does not exceed rupees ten thousand.

41 Where an application for confirmation is pending on the date of publication of these rules, the applicant, if necessary, shall make up any deficiency in Court-fee stamp in accordance with this rule within thirty days from such date, unless the Custodian, on sufficient cause being shown extends the said period.

(S) The Custodian shall cause a notice to be served on the respondent, and the Rehabilitation Authority of the area in which the property is situated, and on any other person likely to be interested in or affected by the result of the application, and may also cause a public notice to be published in a newspaper at the expense of the applicant" 39. The law applicable (section 16) makes it clear that confirmation by the Custodian was required only in case of purchase made from or on behalf of an evacuee or from or on behalf of a "person who has or may hereafter become an evacuee after the date of such creation or transfer". The very fact that this jurisdiction of the Custodian was invoked would show that the status of Tulsibai the owner was taken to be that of an evacuee or one who may afterwards become an evacuee.

40 The Custodian enjoyed extensive powers under this provision of the law. The enquiry had to be summary. He could bring his value judgment to the facts of the case by holding that the transaction "ought for any other reason not to be confirmed" The fact that Tulsibai had only a life interest in the property that there was no certificate furnished as was required under rule 12(3) of Administration of Evacuee Property Rules 1950 could amply justify the refusal of the Custodian to confirm the sale. Even if the provisions of Transfer of Property (Pakistan) Ordinance 1947 were not made applicable to Karachi, its incorporation in statutory rules applicable to Karachi lent to it the force and character of subordinate legislation in that area.

41. The view that we have taken of the nature and extent of ownership of Mst. Tulsi Bai, and the powers enjoyed by the Custodian in the matter of confirmation of such sales, justified the restoration of the order of the Custodian. This appeal is, therefore, allowed, the writ issued by the

High Court is recalled, the coasitutieaal petition dismissed restoring the order of the Custodian dated 9-5-1966. bo order as to costa.

Appeal allowed.

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